

**Justification and Approval
for
Other Than Full and Open Competition**

1. Contracting Agency and Activity.

The Department of the Interior, United States Geological Survey, National Acquisition Branch; plans to contract by means other than full and open competition. This document sets forth the justification and approval for sole source acquisitions as provided for in Federal Acquisition Regulation (FAR) 13.501(a) in accordance with 41 U.S.C. 1901.

2. Nature of Action Being Approved.

The USGS, Water Resources Availability Program (WRAP), requests award of a non-competitive purchase order to Kynetec USA Inc (Kynetec) for agricultural pesticide use and seed trait data in the United States. The purchase order will consist of a base purchase of harvest year 2024 data with the option to purchase separately priced line items for harvest years 2025 through 2028. Delivery of the data is expected to take place no later than March 31st of the year following the harvest reporting year.

3. Description of Supplies or Services.

The proposed contract action is for the purchase of approximately 400 pesticide compounds with seed trait data tracked in Kynetec's FarmTrak™ CP U.S. Study for harvest years 2024 through 2028. The data contains annual use information on the amount and distribution of pesticide and genetically modified crop in the U.S. The data is needed for the USGS Water Quality Processes Program to study the effects of pesticides on water quality. Annual use estimates are required for major crops and all significant active pesticide ingredients for all Crop Reporting Districts (CRD) in the U.S.

4. Estimated Dollar Value.

The total estimated price of 2024 through 2028 data not previously purchased is [REDACTED]
Broken down as follows:

Period	Delivery Date	Price
Base	3/31/2025	[REDACTED]
Option 1	3/31/2026	
Option 2	3/31/2027	
Option 3	3/31/2028	
Option 4	3/31/2029	
Total		[REDACTED]

5. Statutory Authority.

The proposed action may be awarded without full and open competition under 41 U.S.C. 1901 as implemented in FAR 13.501(a).

6. Rationale Supporting Use of Citation in No. 5

Kynetec is the only provider of annual use coefficients for all significant active pesticide ingredients on all major crops and seed trait data per CRD across the conterminous U.S. Information is collected annually based on a statistical sample of 432 sub-state CRDs, which represent multi-county areas within a state that share similar crop management practices and growing conditions. Kynetec is uniquely qualified because they are the only entity, public or

private, that supplies the required data on an annual basis at the CRD spatial resolution. The data are developed from a proprietary statistical survey employing one-on-one detailed surveys of thousands of growers. No other firm or Federal agency provides the same or similar data.

7. Other Information.

None

8. The Efforts to Identify Additional Sources Including the Market Research Conducted.

Market research was conducted between February and March 2023 and consisted of a review of mandatory and established sources including AbilityOne, DOI strategic sourcing mandatory use contracts, and department-wide contract vehicles. No potential sources from mandatory or established sources were identified.

The General Services Administration (GSA) eLibrary and the Small Business Administration's (SBA) Dynamic Small Business Search (DSBS) tool were also queried using the applicable North American Industry Classification System (NAICS) code, 541910, along with various terms to narrow search results including agriculture, crop, and pesticide. Of all the searches, only four (4) results were returned on the DSBS tool using the NAICS code and the keyword "agriculture." After a review of capabilities statements for each of the four (4) firms, it was determined that none of the firms collect and aggregate the pesticide, crop, and seed trait data required.

Web searches were conducted using various combinations of search terms including "private survey pesticide use," "pesticide use data," "agricultural chemical usage," and "agricultural research." Top search results were examined, and it was found that the results primarily consisted of Federal and State government sources such as the National Agricultural Statistics Service (NASS) Agricultural Chemical Use database, National Center for good & Agricultural Policy (NCFAP) National Pesticide Use Database, California Department of Pesticide Regulation Pesticide Use Reporting (PUR), various college studies, and various U.S. Environmental Protection Agency (EPA) reports. Some private and non-profit organizations, such as Hygeia Analytics Pesticide Usage Data System, were also found to publish pesticide usage data. However, none of the Federal and State government sites were found to provide a current, annual, data set for all significant pesticides, all major crops, and seed trait data reported at the CRD level for the entire conterminous U.S. Upon examination, it was also found that the private and non-profit organization sites simply re-publish publicly available information from the Federal and State government sources including USGS's National Water-Quality Assessment Project (NAWQA), which this acquisition is intended to support.

A request for quote for a similar requirement for historical pesticide use data was posted on the System for Award Management (SAM) on March 28, 2024, for a period of 19 days. One response other than Kynetec was received but was found to be technically unacceptable.

No other entity was found to survey the industry and produce an independent dataset that will fully support the WRAP.

Market research failed to identify any source in addition to Kynetec who has the ability to provide current, annual, comprehensive data set for the entire conterminous U.S. at the geographic granularity required.

9. Future Plans to Permit Competition.

The solicitation for this requirement will be posted on the System for Award Management and, pursuant to FAR 13.106-2(a)(3), all responses to the solicitation will be considered. The USGS WRAP will continue to conduct market research to identify additional vendors with the capability to meet the Government's requirements. Upon identifying any additional sources, the Government will compete future requirements to maximum extent practicable.

10. Recommendation and Certification from Program Office

Based on the above, I recommend this acquisition be conducted on the basis of other than full and open competition. I certify that technical data which form a basis for this justification that are the responsibility of technical or requirements personnel are complete and accurate.

X	
---	--

11. Certifications from the Contracting Officer.

It is anticipated that the price for this contract action will be determined fair and reasonable based on a comparison to previous prices paid for the same type of data. This justification is accurate and complete to the best of my knowledge and belief.

13. Approvals

X	[Redacted Signature]
---	----------------------

Contracting Officer

X	[Redacted Signature]
---	----------------------

Chief of the Contracting Office

X	[Redacted Signature]
---	----------------------

Bureau Competition Advocate